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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

BROOKLYN OFFICE

-----X
CHARLES SMITH, RICHARD EDWARDS, and
ABDUL STANLEY,

COMPLAINT

Plaintiffs,

-against-

CV 11 - 1615
Docket No.
Jury Trial Demanded

CITY OF NEW YORK, JOHN FAHIM, and JOHN and JANE
DOE 1 through 10, (the names John and Jane Doe being fictitious,
as the true names are presently unknown),

Defendants.

SUMMONS ISSUED
IRIZARRY, J.
GOLD, M.J.

-----X
Plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, by
their attorneys, Leventhal & Klein, LLP, complaining of the defendants, respectfully allege as
follows:

PRELIMINARY STATEMENT

1. Plaintiffs bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983 and 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiffs also assert supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. §

1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff CHARLES SMITH is a thirty-three year old African American man residing in Philadelphia, Pennsylvania.

7. Plaintiff RICHARD EDWARDS is a thirty-five year old African American man residing in Staten Island, New York.

8. Plaintiff ABDUL STANLEY is a twenty-two year old African American man residing in Staten Island, New York.

9. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

11. That at all times hereinafter mentioned, the individually named defendants, JOHN FAHIM, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties. The individually named defendants are sued in their individual capacities.

12. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the

official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

14. On March 5, 2010, at approximately 7:00 p.m., plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY were lawfully present inside of 74 Castleton Avenue, Staten Island, New York, as employees of the commercial business located at that address, when the defendant police officers approached said business with their guns drawn.

15. Plaintiff STANLEY was exiting 74 Castleton Avenue, when the defendant officers pointed their guns at him and ordered him to lie on the sidewalk. Thereafter, the defendant officers ordered Mr. Stanley to stand up and placed him between two open doors of a police vehicle. The defendant officers searched Mr. Stanley while he was between said doors by patting him down, checking his pockets, and pulling open and looking into the front and back of his underwear. The defendant officers did not recover any contraband from Mr. Stanley. Notwithstanding the fact that the defendant officers lacked probable cause to believe Mr. Stanley had violated any law, the defendants handcuffed Mr. Stanley and placed him in the police vehicle.

16. The defendant officers entered 74 Castleton Avenue and found plaintiffs SMITH and EDWARDS inside near a counter area. The defendants ordered plaintiffs to get on the floor and put their hands behind their backs. When plaintiffs complied with the defendants' order, the defendants handcuffed plaintiffs.

17. While plaintiffs SMITH and EDWARDS were lying on the floor and handcuffed, a defendant officer stepped on the back of Mr. Edwards' neck, and a defendant officer stepped on the right side of Mr. Smith's head. Shortly thereafter, defendant officers stood Mr. Smith and Mr. Edwards up and searched them by patting them down and searching inside their clothing, including looking into the front of Mr. Edwards' pants and underwear. The defendant officers did not recover any contraband from neither Mr. Smith nor Mr. Edwards. Notwithstanding the fact that the defendant officers lacked probable cause to believe that Mr. Smith and Mr. Edwards had violated any laws, the defendants placed them into the same police vehicle as Mr. Stanley, where they were held for approximately thirty minutes. During this time Mr. Edwards repeatedly asked defendant officers to loosen his handcuffs, but the defendants ignored his requests.

18. The defendants transported plaintiffs to the NYPD's 120th precinct stationhouse and imprisoned plaintiffs therein. While imprisoned at the 120th precinct, Mr. Edwards repeatedly requested use of a bathroom which was denied by the defendant officers. As a result, Mr. Edwards urinated in his pants. At approximately 2:30 a.m. the defendants issued Mr. Edwards and Mr. Stanley desk appearance tickets and released them. Mr. Smith was imprisoned until his arraignment in Richmond County Criminal Court the following day.

19. Plaintiffs EDWARDS and STANLEY were compelled to appear in Richmond County Criminal Court on March 6, 2010 when, together with plaintiff SMITH, they were arraigned on baseless charges filed against them based on the false allegations of defendant FAHIM. The defendants initiated said prosecution with malice, and otherwise caused said prosecution to be commenced against plaintiffs for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to cover up the above mentioned abuse of

authority.

20. On March 6, 2010, during the plaintiffs' appearance for arraignment, Judge Desmond Green dismissed and sealed all charges filed against plaintiffs.

21. All of the above occurred while the defendants NYPD officers directly participated or otherwise stood by yet failed to intervene in the illegal conduct described herein.

22. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees, and due to discrimination against plaintiffs due to their race and/or nationality.

23. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants, are insufficiently trained regarding: the search of premises pursuant to the authority of a search warrant; the investigation of incidents; the execution of search warrants; the treatment of innocent and/or uninvolved individuals found at the location of the execution of a search warrant; and, the use of force against such individuals.

24. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

25. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice,

defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

26. As a result of the foregoing, CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, sustained, *inter alia*, pain and suffering, emotional distress, embarrassment, and humiliation, and deprivation of their constitutional rights.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION
(Deprivation of Rights Under 42 U.S.C. § 1983)

27. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs "1" through "26" with the same force and effect as if fully set forth herein.

28. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

29. All of the aforementioned acts deprived plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

30. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to discriminate on the basis of race.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

32. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

33. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

34. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "33" with the same force and effect as if fully set forth herein.

35. Defendants arrested plaintiffs without probable cause, causing them to be detained against their will for an extended period of time and subjected to physical restraints.

36. Defendants caused plaintiffs to be falsely arrested and unlawfully imprisoned.

37. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983)

38. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "37" with the same force and effect as if fully set forth herein.

39. The level of force employed by defendants was excessive, objectively unreasonable and otherwise in violation of plaintiffs CHARLES SMITH and RICHARD EDWARDS' constitutional rights.

40. As a result of the aforementioned conduct of defendants, plaintiffs SMITH and EDWARDS were subjected to excessive force, causing pain and suffering, and emotional distress.

41. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983)

42. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "41" with the same force and effect as if fully set forth herein.

43. Defendants maliciously issued criminal process against plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, by causing them to be arraigned and prosecuted in Criminal Court.

44. Defendants caused CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up their abuse of authority.

45. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be

fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Malicious Prosecution under 42 U.S.C. § 1983)

46. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "45" with the same force and effect as if fully set forth herein.

47. Defendants initiated, commenced and continued a malicious prosecution against plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY.

48. Defendants caused plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, to be prosecuted without any probable cause until the charges were dismissed on March 6, 2010.

49. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

50. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "49" with the same force and effect as if fully set forth herein.

51. The defendants conduct herein were an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

52. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, were deprived of their liberty and right to substantive due process, causing emotional distress and physical pain and suffering.

53. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

54. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "53" with the same force and effect as if fully set forth herein.

55. The defendants seized, detained, arrested, and imprisoned plaintiffs because of plaintiffs' national origin, and/or race, or otherwise failed to intervene to prevent such treatment committed in their presence by other NYPD officers.

56. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY were deprived of their rights under the Equal Protection Clause of the United States Constitution.

57. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

58. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "57" with the same force and effect as if fully set forth herein.

59. Defendants had an affirmative duty to intervene on behalf of plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, whose constitutional rights were being violated in their presence by other officers.

60. The defendants failed to intervene to prevent the unlawful conduct described herein.

61. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, they were humiliated and subjected to handcuffing and other physical restraints, and plaintiffs SMITH and EDWARDS were subjected to excessive force.

62. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

63. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "62" with the same force and effect as if fully set forth herein.

64. The individual defendants personally caused plaintiffs' constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly

supervise and train their subordinate employees.

65. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

66. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "65" with the same force and effect as if fully set forth herein.

67. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

68. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to: arresting individuals without probable cause merely based on their presence at the location of the execution of a search warrant and then committing perjury or manufacturing evidence in an effort to convict such individuals. In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, promoting, compensating and supervising its employees that were the moving force behind the violation of plaintiffs' rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, promote, compensate and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been

deliberately indifferent to, the acts and conduct complained of herein.

69. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY.

70. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, as alleged herein.

71. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, as alleged herein.

72. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, were unlawfully arrested and maliciously prosecuted, and plaintiffs EDWARDS and SMITH were subjected to excessive force.

73. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY'S constitutional rights.

74. All of the foregoing acts by defendants deprived plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, of federally protected rights, including, but

not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest/unlawful imprisonment;
- C. To be free from excessive use of force;
- D. To be free from the failure to intervene;
- E. To be free from malicious prosecution;
- F. To be free from malicious abuse of process;
- G. To receive equal protection under law.

75. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

Supplemental State Law Claims

76. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "75" with the same force and effect as if fully set forth herein.

77. Within ninety (90) days after the claim herein accrued, plaintiffs duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

78. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

79. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

80. Plaintiffs have complied with all conditions precedent to maintain the instant action.

81. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York)

82. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "81" with the same force and effect as if fully set forth herein.

83. Defendants arrested plaintiffs without probable cause.

84. Plaintiffs were detained against their will for an extended period of time and subjected to physical restraints.

85. As a result of the aforementioned conduct, plaintiffs were unlawfully imprisoned in violation of the laws of the State of New York.

86. As a result of the aforementioned conduct, plaintiffs suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

87. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Assault under the laws of the State of New York)

88. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "87" with the same force and effect as if fully set forth herein.

89. As a result of the foregoing, plaintiffs were placed in apprehension of imminent harmful and offensive bodily contact.

90. As a result of defendants' conduct, plaintiffs have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

91. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Battery under the laws of the State of New York)

92. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "91" with the same force and effect as if fully set forth herein.

93. Defendants made offensive contact with plaintiffs without privilege or consent.

94. As a result of defendants' conduct, plaintiffs have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

95. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Malicious Prosecution under the laws of the State of New York)

96. Plaintiffs repeat, reiterate and reallege each and every allegation contained in

paragraphs numbered "1" through "95" with the same force and effect as if fully set forth herein.

97. Defendants initiated, commenced, and continued malicious prosecutions against plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY.

98. Defendants caused plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY to be prosecuted without probable cause until the charges were dismissed on or about March 6, 2010.

99. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress under the laws of the State of New York)

100. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "99" with the same force and effect as if fully set forth herein.

101. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

102. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

103. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant CITY OF NEW YORK.

104. The aforementioned conduct was intentional and for the sole purpose of causing severe emotional distress to plaintiffs.

105. As a result of the aforementioned conduct, plaintiffs suffered emotional distress, together with embarrassment, humiliation, shock, fright, and loss of freedom.

106. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

107. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraph numbered "1" through "106" with the same force and effect as if fully set forth herein.

108. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest of plaintiffs.

109. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

110. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York)

111. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "110" with the same force and effect as if fully set forth herein.

112. Upon information and belief the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the arrest and prosecution of plaintiffs.

113. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION
(Negligence under the laws of the State of New York)

114. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "113" with the same force and effect as if fully set forth herein.

115. Plaintiffs' injuries herein were caused by the carelessness, recklessness and negligence of the defendant CITY OF NEW YORK and its employees and agents, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

116. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be

fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINETEENTH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York)

117. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "116" with the same force and effect as if fully set forth herein.

118. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

119. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTIETH CAUSE OF ACTION
(Violation of N.Y.S. Constitution Article 1 §11)

120. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "119" with the same force and effect as if fully set forth herein.

121. As a result of defendants' conduct, plaintiffs were deprived of their right to equal protection of laws.

122. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD

EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION
(Violation of N.Y.S. Constitution Article 1 §12)

123. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "122" with the same force and effect as if fully set forth herein.

124. As a result of defendants' conduct, plaintiffs were deprived of their right to security against unreasonable searches, seizures, and interceptions.

125. As a result of the foregoing, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

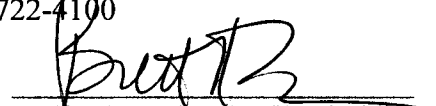
WHEREFORE, plaintiffs CHARLES SMITH, RICHARD EDWARDS, and ABDUL STANLEY, demand judgment and pray for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages in an amount to be determined by a jury;
- (C) reasonable attorney's fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
March 30, 2011

LEVENTHAL & KLEIN, LLP
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Brooklyn, New York 11201
(718) 722-4100

By:


BRETT H. KLEIN (BK4744)

Attorneys for Plaintiffs CHARLES SMITH,
RICHARD EDWARDS, and ABDUL STANLEY

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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CHARLES SMITH, RICHARD EDWARDS, and
ABDUL STANLEY,

Plaintiffs,

Docket No.

-against-

CITY OF NEW YORK, JOHN FAHIM, and JOHN and JANE
DOE 1 through 10, (the names John and Jane Doe being fictitious,
as the true names are presently unknown),

Defendants.

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COMPLAINT

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